

1.

CASE #	CASE NAME	HEARING NAME
CVRI2505001	BROWN vs RAWSON	MOTION FOR DEFAULT JUDGMENT

Tentative Ruling:

Default was entered as to Defendant, Christina Anderson on 7/6/2026. The matter is now set for an Order to appear and show cause, if any, why sanctions should not be imposed for failure to file default judgment (CRC 3.110) at 8:30 AM in Department 6 on 1/5/2027.

The motion is moot.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2600382	TBU, INC. vs CITY OF CALIMESA	DEMURRER ON COMPLAINT

Tentative Ruling:

Moving party: Defendant City of Calimesa

Responding party: Plaintiff TBU, Inc.

Plaintiff TBU, Inc., a license contractor, entered into a written agreement with Oak Valley Development Company ("OVDC"), a developer, to construct and install sewer, domestic water, and recycled water systems for Oak Valley Town Center. OVDC breached the agreement by failing to pay Plaintiff. However, following the breach, OVDC filed for bankruptcy and obtained a discharge of its debt. Plaintiff alleges that Government Code section 66499, et seq. and various sections of the Calimesa Municipal Code impose mandatory duties on Defendant City of Calimesa (or "City") to require a developer to furnish a bond or security as a condition for City's approval of the work to begin. City approved OVDC's tentative parcel map and permitted OVDC to proceed with the work without obtaining a bond or security from OVDC. Plaintiff alleges City's breach of its mandatory duty caused Plaintiff damages in the amount of \$977,448.06 plus interest.

The operative Complaint, filed January 13, 2026, asserts a sole cause of action for Failure to Discharge Mandatory Duties.

City now demurs to the sole cause of action because it is time barred because this action was not filed under the 90-day time frame mandated by California's Subdivision Map Act (the "Act"). City argues Plaintiff has pled no fact that would excuse its untimely lawsuit or claim. Even if Plaintiff's claim was timely filed, Plaintiff's contract was with OVDC, not the City.

In opposition, Plaintiff argues City ignores a separate stand-alone mandatory duty set forth in the City of Calimesa Municipal Code. Alternatively, Plaintiff seeks leave to amend.